

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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ANDRE JEAN,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER  
NICHOLAS SKOMINA, Shield No. 19562, SERGEANT  
ALAN CHAU, and POLICE OFFICERS JOHN DOES #1 -  
10 (names and number of whom are unknown at present),

Defendants.

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**SUMMONS**

Index No.:

The Basis of Venue is:  
Location of Incident

Plaintiff designates Kings  
County as the place of trial.

**To the above named Defendants:**

**You are hereby summoned** to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York  
March 2, 2017

Yours, etc.

\_\_\_\_\_  
/s/  
JACOBS & HAZAN, LLP.  
STUART E. JACOBS, ESQ.  
Attorneys for Plaintiff  
30 Vesey Street, 4<sup>th</sup> Floor  
New York, New York 10007  
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007  
POLICE OFFICER NICHOLAS SKOMINA, Shield No. 19562, 67<sup>th</sup> Precinct, 2820  
Snyder Ave, Brooklyn, NY 11226  
SERGEANT ALAN CHAU, 67<sup>th</sup> Precinct, 2820 Snyder Ave, Brooklyn, NY 11226

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**INDEX NO.:**

**VERIFIED COMPLAINT**

**JURY TRIAL DEMANDED**

Plaintiff ANDRE JEAN, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

**PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On December 9, 2016, at approximately 8:30 p.m., plaintiff, Andre Jean was lawfully inside of a 99 cent store located at 1401 Nostrand Avenue, Brooklyn, New York, when the defendant New York City Police Officers subjected plaintiff to an unlawful search, seizure, false imprisonment, false arrest. Plaintiff was maliciously prosecuted and denied the right to due process and a fair trial until all charges against him were dismissed and sealed in their entirety on January 26, 2017. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, seized, confined, arrested, imprisoned, denied his rights to due process and a fair trial, and maliciously prosecuted plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

**PARTIES**

2. Plaintiff ANDRE JEAN is and was at all relevant times herein a resident of the State of New York.

3. POLICE OFFICER NICHOLAS SKOMINA, Shield No. 19562, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER NICHOLAS SKOMINA, Shield No. 19562, is and was at all times relevant herein, assigned to the 67<sup>th</sup> Precinct.

5. POLICE OFFICER NICHOLAS SKOMINA, Shield No. 19562, is being sued in his individual and official capacity.

6. SERGEANT ALAN CHAU is and was at all times relevant herein, an officer, employee, supervisor and agent of the New York City Police Department.

7. SERGEANT ALAN CHAU is and was at all times relevant herein, assigned to the 67<sup>th</sup> Precinct.

8. SERGEANT ALAN CHAU is being sued in his individual and official capacity.

9. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officers John Does #1-10 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in he as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. At all times relevant herein, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

14. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

16. The CITY OF NEW YORK conducted a hearing pursuant to 50-h of the general municipal law on or about June 5, 2017.

17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

18. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

### **STATEMENT OF FACTS**

19. On December 9, 2016, at approximately 8:30 p.m., plaintiff was lawfully present inside of a 99 cent store located at 1401 Nostrand Avenue, Brooklyn, NY.

20. On December 9, 2016, at approximately 8:30 p.m., the defendant police officers entered the store located at 1401 Nostrand Avenue, Brooklyn, NY, approached plaintiff and asked him for his identification.

21. Plaintiff complied and produced his identification to the defendant police officers.

22. At no time relevant herein did plaintiff commit any crime nor did plaintiff behave in a manner that would lead a reasonable police officer to believe that plaintiff committed a crime or violate the law in any way.

23. Nevertheless, the defendant police officers unlawfully handcuffed plaintiff and falsely arrested plaintiff without probable cause or any legal justification.

24. The defendant police officers transported plaintiff against his will to the 67<sup>th</sup> Precinct where he was unlawfully photographed, searched, fingerprinted, and placed in a holding cell.

25. On December 10, 2016, after many hours in custody at the 67<sup>th</sup> Precinct, plaintiff was transported to Kings County Central Booking and detained in a holding cell.

26. The defendant police officers provided the District Attorney's Office with false, misleading and/or incomplete information about the facts in their possession that they purportedly used to establish probable cause to arrest and/or prosecute plaintiff.

27. Based upon the false, misleading and/or incomplete information, facts and/or evidence provided to the District Attorney's Office by the defendant police, a criminal

prosecution was initiated against plaintiff wherein plaintiff was accused of committing crimes he did not commit and for which the officers lacked probable cause to accuse him of committing.

28. On December 10, 2016 at approximately 9:00 p.m. after more than 24 hours in unlawful custody, plaintiff was arraigned in Kings County Criminal Court, charged with crimes he did not commit, and was released on his own recognizance.

29. The defendant police officers unlawfully charged plaintiff with Disorderly Conduct and violating New York City Administrative Code 20-360 – Unlicensed Cabaret without legal justification or probable cause.

30. Thereafter, plaintiff was required to appear in court for crimes he did not commit on one additional occasion.

31. On January 26, 2017, all charges against plaintiff were dismissed by motion of the District Attorney and sealed in their entirety.

32. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure and prosecution of plaintiff.

33. The unlawful search, false arrest, false imprisonment, malicious prosecution, and denial of plaintiff's right to due process and a fair trial plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

### **FIRST CAUSE OF ACTION**

#### **Violation of Plaintiff's Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights**

34. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 33 with the same force and effect as if more fully set forth at length herein.

35. The individually named police officer defendants while acting in concert and within the scope of their authority caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied the right to due process/ right to fair trial without probable cause in violation of plaintiff's right to be free of unreasonable seizure under the Fourth Amendment to the Constitution of the United States, denial of his right to due process under the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

36. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

37. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

## **SECOND CAUSE OF ACTION**

### **False Arrest and False Imprisonment**

38. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.

39. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

40. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

41. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

42. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

## **THIRD CAUSE OF ACTION**

### **Unlawful Search**

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

45. Defendants lacked probable cause to search plaintiff.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

48. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

### **FOURTH CAUSE OF ACTION**

#### **Malicious Prosecution**

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

51. Defendants commenced and continued a criminal proceeding against plaintiff.

52. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

53. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

54. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

### **FIFTH CAUSE OF ACTION**

#### **Denial of Right to Fair Trial**

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

60. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

61. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

62. In withholding/creating false evidence against plaintiff Andre Jean and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional rights to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

63. As a result of the foregoing, plaintiff Andre Jean sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

66. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

## **SIXTH CAUSE OF ACTION**

### **Negligent Hiring, Retention, Training and Supervision**

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.



**SEVENTH CAUSE OF ACTION****Failure to Intervene**

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

71. Defendants failed to intervene to prevent the unlawful conduct described herein.

72. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

**JURY DEMAND**

74. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

**PRAYER FOR RELIEF**

**WHEREFORE**, plaintiff Andre Jean demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York  
March 2, 2017

By: /s/  
STUART E. JACOBS  
DAVID M. HAZAN  
JACOBS & HAZAN, LLP  
Attorneys for Plaintiff  
30 Vesey Street, 4<sup>th</sup> Floor  
New York, NY 10007  
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007  
POLICE OFFICER NICHOLAS SKOMINA, Shield No. 19562, 79<sup>th</sup> Precinct, 263  
Tompkins Ave, Brooklyn, NY 11216  
SERGEANT ALAN CHAU, 79<sup>th</sup> Precinct, 263 Tompkins Ave, Brooklyn, NY 11216

**ATTORNEY'S VERIFICATION**

**STUART E. JACOBS**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe he to be true. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York  
March 2, 2017

/s/  
STUART E. JACOBS